

## 25STCV10909 25STCV10909

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No. 15 - Sajma Wittmann v. Michael Finley, et al.

Defendant Michael Finley's Motion for Imposition of Issue, Terminating, and Monetary Sanctions

Defendant Michael Finley moves for issue, terminating, and monetary sanctions against Plaintiff Sajma Wittmann for failure to comply with discovery orders.

CCP § 2023.030(d) permits courts to impose terminating sanctions against a party for misuse of the discovery process. Misuse of the process includes “[f]ailing to respond or to submit to an authorized method of discovery” (CCP § 2023.010(d)) and “[d]isobeying a court order to provide discovery” (CCP § 2023.010(g)). Courts “may impose a terminating sanction” by “striking out” pleadings. (CCP § 2023.030(d)(1).) Discovery sanctions should be imposed incrementally, “starting with monetary sanctions and ending with the ultimate sanction of termination.” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.)

On June 2, 2026, the Court heard Defendant’s motions to compel initial discovery responses to form interrogatories, special interrogatories, and requests for production. The Court granted Defendant’s motions, ordered Plaintiff to serve verified responses without objections within 10 days, and issued monetary sanctions. In the instant motion, Defendant declares that Plaintiff has still not served her written discovery responses. (Finley Decl., ¶ 5.)

In opposition, Plaintiff does not address whether she has served the discovery responses, nor attached any responses to show compliance with the Court’s order. Instead, she incorporates an excerpt from her prior brief opposing Defendant’s discovery motions. She also argues that this Court is not permitted to decide the instant motion because she filed a statement of disqualification.

As an initial matter, the Court notes that the issue of disqualification has already been decided. The Court reviewed Plaintiff’s statement of disqualification and struck it on September 3, 2026. Thus, the Court has the authority and ethical duty to decide this motion, as Plaintiff did not disclose any valid legal grounds for disqualification.

Regarding sanctions, the Court has reviewed the file and declines to award terminating sanctions. While the Court acknowledges that Plaintiff has seemingly not served initial discovery responses for a case she initiated in April 2025, terminating sanctions is too drastic a remedy considering the Court has only imposed monetary sanctions once. “[A] terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” (Ibid.) Terminating sanctions are “ ‘ordinarily a drastic measure which should be employed with caution.’ ” (McArthur v. Bockman (1989) 208 Cal.App.3d 1076, 1080.)

The Court finds the appropriate sanction will be to give CACI jury instruction No. 204, which may be modified if warranted by the evidence introduced at trial. CACI No. 204, based on Evidence Code section 413, states, "You may consider whether one party intentionally concealed or destroyed evidence. If you decide that a party did so, you may decide that the evidence would have been unfavorable to that party."

The Court will make a final determination of whether to give CACI No. 204 as drafted or modified once both parties have rested at trial. "Giving these instructions [CACI No. 204] [is] proper" when there is "evidence from which it could reasonably be concluded that" a party "failed to produce stronger evidence or willfully suppressed evidence." (Sprague v. Equifax, Inc. (1985) 166 Cal.App.3d 1012, 1051.) The Court will give the instruction if the evidence at trial permits such a conclusion.

The Court exercises its discretion not to award Defendant monetary sanctions for having to bring this motion. The Court cautions Plaintiff, though, that further failure to comply with discovery orders could result in additional sanctions, including monetary, issue or terminating sanctions.

Plaintiff still has not served verified responses without objections to Defendant's first set of form interrogatories, first set of special interrogatories, and first set of requests for production of documents, as was ordered on June 2, 2026. Plaintiff is ordered to serve those verified responses on or before October 19, 2026, or she may be precluded from introducing evidence at trial any evidence or documents sought through that discovery.

#### Disposition

Defendant Michael Finley's motion for imposition of issue, terminating, and monetary sanctions is granted in part. The Court will consider giving CACI No. 204 as a jury instruction, either as drafted or as to be revised. The Court will reserve its ruling on the instruction until after the evidence is presented at trial. Plaintiff is to serve verified responses, without objection, to Defendant's first set of form interrogatories, first set of special interrogatories, and first set of requests for production of documents on or before October 19, 2026 or risk facing additional sanctions.